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# Claim and extension-of-time narrative structure

The skeleton of a defensible submission — contractual basis, notice, chronology, causation, method, effect, quantum, records

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PROJECT CONTROLS INSTITUTE GLOBAL, INC.

AI proposes. The professional disposes.

## Summary

The structure of a claim or extension-of-time submission that can survive being read by someone looking for a reason to reject it: the contractual basis element by element, the notice record including where it is weak, a dated and sourced chronology, the causal chain event by event, the delay analysis method stated and justified, the effect on each contractual date, the quantum with its arithmetic, the records relied on, and the assumptions. This is a structure, not legal advice.

## About this document

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# Contents

# Claim and extension-of-time narrative structure

**In one paragraph.** The structure of a claim or extension-of-time submission that can survive being read by someone looking for a reason to reject it: the contractual basis element by element, the notice record including where it is weak, a dated and sourced chronology, the causal chain event by event, the delay analysis method stated and justified, the effect on each contractual date, the quantum with its arithmetic, the records relied on, and the assumptions. This is a structure, not legal advice.

**Who this is for.** Commercial managers, quantity surveyors, planners and project controls managers who prepare or assess submissions; and the project directors who have to decide whether one is ready to go.

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**This is a structure, not legal advice.** Whether an event gives rise to relief, what relief it gives, what notice is required and what happens if it is late, whether concurrent delay reduces or extinguishes entitlement, and which heads of loss are recoverable are all determined by the contract in front of you and by the law governing it. Those things differ between contracts and between jurisdictions, and nothing here is a substitute for advice from a qualified adviser in the relevant jurisdiction. Extension of time is abbreviated to EOT throughout.

## 1. When to use this

Use it in three situations, and the earlier of them is the one that pays.

**While the events are happening**, as the live skeleton the project fills in as it goes. A submission assembled from a structure that has been populated contemporaneously is a different document from one reconstructed eight months later, and the difference is visible on the first page. If you take one thing from this template, take the habit of opening Part D — the chronology — on the day the first event occurs.

**When preparing a submission**, as the table of contents and the completeness test. Every part below has a purpose; a part left empty is a question the assessor will ask.

**When assessing somebody else's submission.** The structure works in reverse. Read it looking for the parts that are missing, and you will find the weak point in about ten minutes: an unstated contractual basis, a chronology braided together with argument, a delay analysis whose method is never named, or a quantum with no path back to a record.

It is not a form to be filled in and sent. A claim is an argument, and the structure exists so the argument is visible, not so it can be replaced by headings.

## 2. How to complete it

### 2.1 Establish what the contract requires before writing anything else

Start at Part B, not Part D. The most common structural failure in submissions is a long, well-evidenced factual account that never connects to a mechanism in the contract. Identify the mechanism you rely on, read it in your executed contract — not in your memory of a standard form — and list the elements it requires to be established. That list becomes the specification for the rest of the document.

Do not cite clause numbers from a standard form from memory. Amendments are the norm, and a submission that relies on unamended wording that your contract does not contain damages every other part of it.

### 2.2 Separate fact from argument, absolutely

Part D is fact: dated, sourced, neutral, and written so that the other party could not reasonably object to any single line of it. Part E is argument: what those facts caused. Keeping them apart is not a stylistic preference. A chronology laced with characterisation invites the assessor to dispute the facts, which is a much better fight for them than disputing the causation. A neutral chronology forces the argument to happen where you want it.

The practical test: if a sentence in Part D contains an adjective about the other party's conduct, it belongs in Part E or nowhere.

### 2.3 Prove causation event by event, not in aggregate

The weakest common structure is a list of events followed by a global statement of delay. Part E requires, for each event: the activity or work affected, the physical mechanism by which it was affected, the effect on that activity, whether the affected path was already critical or became critical, and the effect on the completion date. That is more work and it is the difference between a submission that is assessed and one that is dismissed.

### 2.4 State the delay analysis method, and say what it is weak at

Part F names the method, justifies it against the records available and the timing of the analysis, and says plainly what the method is known to be poor at. Volunteering the limitation is not weakness; it is the single most credible thing a submission can do, and it removes the assessor's best line of attack.

The main families, described here in general terms:

**As-planned versus as-built.** Compare the planned programme with what actually happened and identify the differences. Simple, transparent and readable by a non-specialist. Weak at attributing cause: it shows that things happened differently, not why.

**Impacted as-planned.** Insert the delay events into the baseline logic and observe the movement of the completion date. Requires only a baseline and the events. Weak because it ignores everything else that happened — actual progress, other delays, changes in sequence — and so tends to overstate.

**Time impact analysis.** Insert the event into the schedule updated to just before it occurred, and measure the resulting movement. Prospective in character, closely matched to how a contract administrator would have assessed at the time. Requires good contemporaneous schedule updates, and is sensitive to their quality.

**Collapsed as-built.** Remove the events from the as-built programme and observe what the completion date would have been without them. Requires a reliable as-built with defensible logic, which is often the hardest input to produce. Sensitive to the logic the analyst inserts.

**Windows or time-slice analysis.** Divide the period into windows and determine what actually drove completion in each. Generally the most robust where good updates exist, because it follows the critical path as it moved. The most expensive, and dependent on the quality of the updates.

**As-built critical path or longest-path analysis.** Identify the path that actually determined completion and analyse the delays on it. Intuitive, and contentious where the as-built logic must be reconstructed.

The choice is a matter of professional judgement, and competent analysts differ. The grounds for choosing are: what records exist, the quality of the contemporaneous schedule updates, whether the analysis is being done prospectively or after the event, what the contract says about how EOT is to be assessed, and proportionality. Record all five in Part F. An analysis whose method was chosen because it produced the largest number, and whose justification was written afterwards, is usually detectable — the justification will not mention the records.

### 2.5 Validate the schedule you are relying on, and disclose every adjustment

A delay analysis is only as good as the schedule underneath it. Run a quality review over every programme relied on — baseline, updates, as-built — and record the outcome, including the failures. Use `TPL-14 — Schedule quality review checklist` and reference it in Part F.

Then disclose every adjustment made to the schedule for the purposes of the analysis: logic added, logic removed, constraints released, calendars amended, activities split. Each with a reason. An undisclosed adjustment discovered by the other side does more damage than the adjustment itself ever saved.

### 2.6 Build the quantum from records, and price the right period

Part H requires, for each head of claim: the principle, the period claimed, the basis of the rate, the records the figure comes from, and the arithmetic. Two disciplines matter most.

**Price the period in which the delay occurred**, not the period at the end of the job. Time-related costs differ by phase — the resources standing during a foundations delay are not the resources standing during commissioning — and pricing the wrong window produces a number that is wrong in a direction the assessor will find.

**Derive rates from actual cost records where you have them.** The tender allowance is what you hoped to spend. Where actual records are genuinely unavailable, say so, state what you used instead, and explain why it is a reasonable proxy.

Which heads of loss are recoverable — prolongation, disruption, acceleration, finance charges, head-office overhead contribution, loss of profit — is a matter of the contract and the governing law, and differs between jurisdictions. Set out the principle and the arithmetic; leave the question of recoverability to the parties and their advisers, and say in the submission that you have done so.

## 3. The template

Eleven parts. Each is a section of the submission, with the control table that goes in it.

### Part A — Submission control

| Field | What goes in it |
|---|---|
| Submission reference and revision | |
| Date of submission | |
| Contract | The parties, the contract title and the date of the executed contract |
| Relief sought | Time · Money · Both. State the number for each |
| Events relied on | A numbered list, each with a short label used consistently throughout |
| Prepared by | Names and roles of everyone who contributed, and what each contributed |
| Basis of preparation | Contemporaneous · Retrospective · Mixed, with dates |
| Statement of limitations | What this submission does not address, and why |

### Part B — Contractual basis

One row per element the mechanism requires.

| Field | What goes in it |
|---|---|
| Mechanism relied on | Identified from the executed contract, with its reference as it appears there |
| Element the contract requires | One row per element, in the contract's own terms |
| Where it is established | The part and paragraph of this submission |
| Evidence reference | The document reference in Part I |
| Position | Established · Partly established · Not established, with a note where it is not |

### Part C — The notice record

One row per event.

| Field | What goes in it |
|---|---|
| Event reference | Matching Part A |
| What the contract requires as a trigger | Occurrence · Awareness · Constructive awareness, as your contract provides |
| Date the trigger arose | And how that date is evidenced |
| Notice period | And whether calendar or working days |
| Notice due | |
| Notice served | Date, method of service, addressee, and the reference |
| Recipient's response | And its date |
| Notice position | Compliant · Arguably compliant · Late · Not served |
| Where the position is weak, what is said about it | Stated here, not omitted |

## Part D — Factual chronology

Facts only. One row per entry, ascending by date.

| Field | What goes in it |
|---|---|
| Date | |
| Fact | What happened, stated so the other party could not reasonably object to the sentence |
| Source | Document reference, with its date and author |
| Event reference | Which of the events in Part A this entry relates to, if any |

## Part E — The causal chain

One block per event. Repeat the whole block for each.

| Field | What goes in it |
|---|---|
| Event reference and description | |
| Work or activity affected | Named activities, with schedule identifiers |
| Mechanism of effect | Access denied · Information late · Instructed change · Resequencing · Resource diverted · Standing time · Rework, and how it operated in fact |
| Effect on the activity | Start delayed by, duration extended by, or both, in working days |
| Path status before the event | Critical · Near critical with stated float · Not critical |
| Path status after the event | And whether the path became critical because of the event |
| Effect on the completion date | In working days, with the analysis reference in Part F |
| Concurrency | Whether any other delay ran concurrently, whose it was, and the position taken — noting that the treatment of concurrent delay depends on the contract and the governing law |
| Mitigation | What was done to mitigate, what it cost, and whether it was instructed |

## Part F — Delay analysis

| Field | What goes in it |
|---|---|
| Method used | Named, from §2.4 or otherwise |
| Why this method | Against the records available, the quality of the updates, the timing of the analysis, what the contract requires, and proportionality |
| What this method is weak at | Stated plainly |
| Methods considered and not used | And why |
| Schedules relied on | File names, revisions, dates, data dates |
| Schedule validation | The quality review reference, its date, and every check it failed |
| Adjustments made | Every logic change, constraint release, calendar amendment or activity split, each with a reason |
| Analysis windows | Where windows are used, their boundaries and why they were drawn there |
| Results | Per window or per event: delay identified, to which path, and to which milestone |
| Reviewer | Independent of the analyst, named, with date |

## Part G — The effect

| Field | What goes in it |
|---|---|
| Milestone or sectional date | |
| Contractual date before this submission | |
| Extension claimed | In working days, and the calendar used |
| Revised date sought | |
| Basis | Reference to the Part F result that produces it |
| Monetary consequence attached to the date | Whether the date carries damages, a bonus, or a payment trigger, in general terms |

## Part H — Quantum

| Field | What goes in it |
|---|---|
| Head of claim | Prolongation · Disruption · Acceleration · Additional resource · Finance · Other, named |
| Principle | What this head compensates, in one sentence |
| Period claimed | The specific window, with dates |
| Basis of the rate | Actual cost records · Rate in the contract · Reasoned proxy, with the reason |
| Source records | Reference into Part I |
| Arithmetic | The substitution shown, not just the result |
| Amount | |
| Recoverability | Noted as a matter for the contract and the governing law, not asserted here |

## Part I — Records relied on

| Field | What goes in it |
|---|---|
| Reference | The citation used throughout the submission |
| Document | Title, date, author, recipient |
| Custodian and location | Where the original is held |
| What it establishes | The specific proposition, not "background" |
| Corroborated by | Another reference, or "single source" |

The corroboration column is worth the effort. A submission that says plainly which propositions rest on a single document, and which are supported by two or more independent records, is far harder to attack than one that presents everything at the same weight. It also tells your own team where to go looking before the submission is issued.

### Part J — Assumptions and reservations

| Field | What goes in it |
|---|---|
| Assumption | Stated as an assumption |
| Why it is necessary | What record is missing or what question is open |
| Effect if it is wrong | Quantified where possible |
| How it could be resolved | What document or confirmation would settle it |

Any reservation of rights should be in wording the party's own advisers have approved. Do not draft it from a template.

### Part K — What is not claimed

A short section stating what has been excluded and why: events assessed and found not to give rise to relief, periods excluded as the claiming party's own delay, heads of loss not pursued, and any part of the period where the records are insufficient to support a claim. It costs a paragraph and it changes how the whole document is read.

## 4. Worked fragment

Illustrative figures. Currency-neutral units. Working days on a five-day Monday-to-Friday calendar, no public holidays assumed — a real analysis uses the contract calendar. The example assumes the contract provides for both an extension of time and the recovery of time-related costs for this category of event; whether any particular contract does so, and under what conditions, is a matter for that contract and its governing law.

**Part G extract**

| Milestone | Contractual date | Extension claimed | Revised date sought | Basis |
|---|---|---|---|---|
| Sectional completion — substation energisation | Wednesday 30 September 2026 | 22 working days | Friday 30 October 2026 | Part F, window 3 |

The revised date is the contractual date advanced by 22 working days on the stated calendar: `WORKDAY(30 September 2026, 22)` gives Friday 30 October 2026. Counting confirms it — 1 and 2 October are the first two working days, and the twenty-second falls on Friday 30 October. State the calendar every time you state a working-day figure; the same 22 days on a six-day calendar lands on a different date and the difference will be found.

**Part H extract — prolongation**

| Head | Period claimed | Basis of rate | Rate | Weeks | Amount |
|---|---|---|---|---|---|
| Prolongation — time-related site costs | 1 October to 30 October 2026 | Actual cost records for the period in which the delay ran | 47,500 per week | 4.4 | 209,000 |

The substitutions: the extension is 22 working days, and `22 ÷ 5 = 4.4` weeks on a five-day calendar. The weekly rate of 47,500 is the sum of the time-related costs actually incurred in that window — site establishment, supervision, temporary services, site accommodation and standing small plant

— taken from the cost ledger for the period and reconciled to it. Prolongation is therefore `47,500 × 4.4 = 209,000`.

Three things this small table is doing deliberately. The rate comes from the actual records for **that window**, not from the tender allowance and not from an average across the job. The period claimed is stated as dates, so an assessor can go to the ledger and check it. And the conversion from working days to weeks names the calendar, because 22 working days is 4.4 weeks or 3.67 weeks depending on a fact the reader otherwise has to guess.

What the table does not do is assert that this amount is recoverable. That depends on the contract and the governing law, and the submission should say so in the recoverability column rather than leaving the reader to infer an assertion the preparer is not qualified to make.

## 5. Common mistakes

**No stated contractual basis.** A submission that describes events and asks for relief without identifying the mechanism and its elements is asking the assessor to build the claim for them. They will not.

**Clause numbers quoted from memory of a standard form.** Amendments are normal. Cite the executed contract.

**Chronology and argument braided together.** It converts a dispute about causation into a dispute about facts, which is a fight you did not need to have.

**Global causation.** "The above events caused a delay of 22 weeks" without an event-by-event chain is the single most common reason a well-founded claim is rejected.

**The method not named.** An analysis presented as self-evident is an analysis whose weaknesses have not been thought about. Name it, justify it, and say what it is poor at.

**The schedule not validated.** Relying on a programme with open ends, hard constraints and out-of-sequence progress, without disclosing them, means the whole analysis fails when the other side runs the checks — and they will.

**Undisclosed adjustments.** Every change you make to a programme for the purposes of analysis must be disclosed with a reason. This is the fastest way to lose credibility across an entire submission.

**Quantum from the tender.** Rates taken from the tender allowance rather than the cost records invite the response that the claim is a recovery of a pricing error, and that response is often right.

**The wrong window priced.** Time-related costs from the wrong phase produce a number that does not reconcile to the ledger for the period claimed.

**Concurrency ignored.** A submission silent on concurrent delay, where concurrency plainly existed, reads as either careless or evasive. State the position and the grounds, and note that the treatment depends on the contract and the governing law.

**Notice weaknesses hidden.** A late notice found by the other party is worse than a late notice disclosed and addressed. Part C exists to make that decision consciously rather than by omission.

**No statement of what is not claimed.** Everything in the submission is read as maximal. A short exclusions section makes the rest credible.

## 6. Adapting it

**Safe to change.** The order of Parts G and H, the granularity of the chronology, the number of analysis windows, and the addition of parts your contract's procedure requires. Add an executive summary at the front if the submission is long — but write it last, and make sure every sentence in it is supported by a part below.

**Safe to add.** A disruption analysis as a separate part where the claim includes loss of productivity, as it needs a different structure from a delay analysis. An interface part where several contracts are involved. A without-prejudice commercial position, kept clearly separate from the submission itself and handled on your advisers' instructions.

**Do not change.** The separation of Part D from Part E. The requirement to name and justify the method. The disclosure of schedule adjustments. The records-to-proposition mapping in Part I. And the position that recoverability and entitlement are matters for the contract and the governing law, not assertions made by the preparer.

### 6.1 Before the submission is issued

- The mechanism is identified from the executed contract, and every element it requires has a row in Part B with a stated position.
- Every event in Part A has a notice row in Part C, including the events where the notice position is weak.
- Part D contains no adjectives about the other party's conduct and every entry has a source.
- Every event has its own causal block in Part E, with the path status before and after.
- The delay analysis method is named, justified on all five grounds, and its weakness stated.
- Every programme relied on has a quality review reference, and every failed check is disclosed.
- Every adjustment to a programme is listed with a reason.
- Every quantum figure has its arithmetic shown, its period stated as dates, and a record reference.
- Every working-day figure names the calendar it is counted on.
- Every proposition in Part I is marked corroborated or single source.
- The assumptions in Part J each state what would change if they were wrong.
- Part K states what is not claimed.
- Someone who did not prepare the submission has read it cold and been asked where they would attack it.

## Related

- `BPG-12 — Claims and extension of time` — the method behind this structure, including how entitlement, causation and quantum interact and where each is typically lost
- `BPG-11 — Change orders and variations` — the process a change goes through before it becomes a claim
- `TPL-12 — Change order log` — the contemporaneous record that supplies Part C and much of Part D

- `TPL-14 — Schedule quality review checklist` — the validation Part F must reference for every programme relied on
- `BPG-05 — Schedule quality — a practical review` — why an unvalidated programme cannot carry a delay analysis

## Sources and standards

This is an original instrument developed by the Institute. It reproduces no third-party template, protocol, form or contract wording, and cites no clause number, case or published guidance. The delay analysis method families in §2.4 are described in the Institute's own words as the general shapes in professional use; the descriptions are not attributed to, and should not be read as summaries of, any particular published protocol. Nothing in this template is legal advice, and no jurisdiction's law, procedure or accounting treatment is presented as universal.

## Status and version

Founding-stage document · Version 1.0 · draft · Reviewed under PCI governance. PCI makes no claims of accreditation or recognition beyond what is true today.